

GOVERNMENT OF WEST BENGAL
LAW DEPARTMENT
Legislative

West Bengal Act XVI of 2000

**THE JADAVPUR UNIVERSITY (AMENDMENT)
 ACT, 2000.**

[*Passed by the West Bengal Legislature.*]

[Assent of the Governor was first published in the *Calcutta Gazette, Extraordinary*, of the 25th July, 2000.]

[25th July, 2000.]

An Act to amend the Jadavpur University Act, 1981.

West Ben.
Act XXIV
of 1981.

WHEREAS it is expedient to amend the Jadavpur University Act, 1981, for the purposes and in the manner hereinafter appearing;

It is hereby enacted in the Fifty-first Year of the Republic of India, by the Legislature of West Bengal, as follows:—

1. (1) This Act may be called the Jadavpur University (Amendment) Act, 2000.

Short title and commencement.

(2) It shall come into force on such date as the State Government may, by notification in the *Official Gazette*, appoint.

2. In sub-section (1) of section 3 of the Jadavpur University Act, 1981 (hereinafter referred to as the principal Act), after the words “or the Vice-Chancellor”, the words “or the Pro-Vice-Chancellor” shall be inserted.

Amendment of section 3 of West Ben. Act XXIV of 1981.

3. In section 7 of the principal Act, after clause (1), the following clause shall be inserted:—

Amendment of section 7.

“(1A) the Pro-Vice-Chancellor;”.

4. In clause (a) of sub-section (5) of section 9 of the principal Act, for the words “the senior Dean of the Faculty Councils for post-graduate and undergraduate studies”, the words “the Pro-Vice-Chancellor” shall be substituted.

Amendment of section 9.

(Section 5.)

Insertion
of new
section 10A
and 10B.

5. After section 10 of the principal Act, the following sections shall be inserted:—

“The Pro-Vice-Chancellor. 10A. (1) The Pro-Vice-Chancellor shall be appointed by the Chancellor in consultation with the Minister and the Vice-Chancellor. The term of his office shall be for four years and he shall be eligible for re-appointment for a period not exceeding four years but shall not hold office beyond the age of 65 years.

(2) The Pro-Vice-Chancellor shall be a whole-time officer of the University and shall be paid from the University Fund such salary and allowances as the Chancellor may decide in consultation with the State Government.

(3) The Pro-Vice-Chancellor may resign his office by writing under his hand addressed to the Chancellor.

(4) If—

(a) the Pro-Vice-Chancellor is, by reason of leave, illness or other cause, temporarily unable to exercise the powers and perform the duties of his office, or

(b) a vacancy occurs in the office of the Pro-Vice-Chancellor by reason of death, resignation or expiry of the term of his office, removal or otherwise,

then, during the period of such temporary inability or pending the appointment of a Pro-Vice-Chancellor, as the case may be, the Chancellor, in consultation with the Minister and the Vice-Chancellor, shall authorise the Dean of the Faculty Council for post-graduate and undergraduate studies in Engineering and Technology to exercise the powers and perform the duties of the Pro-Vice-Chancellor.

(5) The vacancy in the office of the Pro-Vice-Chancellor occurring by reason of death, resignation or expiry of the term of his office, removal or otherwise shall be filled up by appointment of a Pro-Vice-Chancellor in accordance with the provisions of sub-section (1) within a period of six months from the date of occurrence of the vacancy.

Location of office and powers and duties of the Pro-Vice-Chancellor. 10B. (1) The office of the Pro-Vice-Chancellor shall be located at the campus of the University situated at Bidhannagar, district North 24-Parganas (hereinafter referred to in this section as the campus of the University).

(2) Subject to the supervision, direction and general control of the Vice-Chancellor, the Pro-Vice-Chancellor shall be the academic and administrative officer in all matters concerning the development and improvement of post-graduate and undergraduate studies and research conducted in the campus of the University.

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(Sections 6-9.)

(3) The Pro-Vice-Chancellor shall, by virtue of his office, be a member of the Court, the Executive Council, and the Faculty Council for post-graduate and undergraduate studies in Engineering and Technology and such other committees of the University as may be required under the provisions of this Act or the Statutes. He shall also attend the meetings of the Faculty Council for post-graduate and undergraduate studies in Science, if the Vice-Chancellor considers it necessary. He shall preside over the meeting of the Faculty Council for post-graduate and undergraduate studies in Science, if the Vice-Chancellor is absent in such meeting.

(4) The Pro-Vice-Chancellor shall exercise such other powers and perform such other duties for the development and improvement of all administrative and academic matters conducted in the campus of the University as may be delegated to him by the Vice-Chancellor or as may be prescribed or as may be delegated to him by or under any provisions of this Act.”

6. In sub-section (1) of section 16 of the principal Act, after clause (ii), the following clause shall be inserted:—

Amendment
of section 16.

“(ia) the Pro-Vice-Chancellor, *ex officio*;”.

7. In sub-section (1) of section 19 of the principal Act, under the heading “(a) *ex officio members*”, after clause (i), the following clause shall be inserted:—

Amendment
of section 19.

“(ia) the Pro-Vice-Chancellor;”.

8. In sub-section (3) of section 21 of the principal Act, after clause (i), the following clause shall be inserted:—

Amendment
of section 21.

“(ia) the Pro-Vice-Chancellor—Vice-Chairman;”.

9. For sub-section (2) of section 23 of the principal Act, the following sub-section shall be substituted:—

Amendment
of section 23.

“(2) The Dean shall be elected by the members of the Faculty Council from amongst themselves. The Dean of the Faculty Council for post-graduate and undergraduate studies in Arts and the Dean of the Faculty Council for post-graduate and undergraduate studies in Science shall be the Vice-Chairman of the respective Faculty Councils.”.

The Jadavpur University (Amendment) Act, 2000.

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(Sections 10, 11.)

Amendment
of section 25.

10. In section 25 of the principal Act, after the words “with the Vice-Chancellor as the Chairman”, the words “and the Pro-Vice-Chancellor as the Vice-Chairman” shall be inserted.

Amendment
of section 51.

11. In sub-section (1) of section 51 of the principal Act, for the words “The Vice-Chancellor, or, with the approval of the Vice-Chancellor, the Registrar, may,”, the words “The Vice-Chancellor or, with the approval of the Vice-Chancellor, the Pro-Vice-Chancellor or the Registrar may,” shall be substituted.
